

Naseem Akhtar v. State of U.P.

Allahabad High Court · Division Bench · 20 May 2022 · WRIT - C No. 4141 of 2022 · **Writ disposed; Para 6.8 objection to be decided; coercive action stayed eight weeks.**

HEADNOTE

Allahabad High Court disposed of a writ challenging a DISCOM demand notice without deciding merits, relegating the consumer to an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, with a time-bound hearing and a short stay of coercive recovery.

FACTUAL SUMMARY

Naseem Akhtar approached the Allahabad High Court against a demand notice (letter no. 2063) issued by the Executive Engineer, Vidyut Vitaran Khand Ist, U.P. Power Corporation, Mau, seeking certiorari to quash that demand and mandamus restraining harassment pursuant to a Government Order dated 3 February 2021. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand notice as alternate remedy

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks; if so submitted, it shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ against a DISCOM demand notice disposed without merits, relegating the consumer to a Para 6.8 objection to be decided in accordance with law. ¶ 4

fresh-objection-under-clause-6.8 Petitioner given liberty to file a fresh objection under Para 6.8 within four weeks, to be heard and decided within the next four weeks. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED DEMAND NOTICE AND THE GOVERNMENT ORDER DATED 3.2.2021

Court expressly declined to express any opinion on merits. ¶ 4